

quam hominis, as in 37 H. 6. 16. If a man has *interesse termini pro termino annorum* to begin at Michaelmas, he cannot expressly surrender this interest; but if he takes a new lease for years, this acceptance is a (a) surrender in law of the first lease. So if a prior with the consent of his convent makes a lease for years rendering rent; if the prior by deed expressly releases the rent and dies, the successor shall recover the arrearages: but if the prior had ousted the lessee and died, this discharge in law should discharge the rent which incurred during the ouster against the successor, as it appears in 34 H. 6. 21.

And this construction and no other stands with the words and intention of the said letters patent. But if (b) two constructions may be made of the King's grant, then the rule is, when it may receive two constructions, and by force of one construction the grant may according to the rule of law be adjudged good, and by another it shall by law be adjudged void: then for the King's honour, and for the benefit of the subject, such construction shall be made, that the King's charter shall take effect, for it was not the King's intent to make a void grant; and therewith agrees *Sir (c) J. Molins's case* in the Sixth Part of my Reports. ¶ 2. It was resolved, that the (d) delivery made by the wardens of the said letters patent in Chancery to be cancelled, &c. (which was part of the consideration) by their hands without writing, was sufficient, and as much as they ought to do; and it belongs to the Lord Chancellor or his officers to have cancelled them, and every one ought to do what belongs to him to do. ¶ 3. It was resolved, (e) that it was not necessary to find the payment of the said twenty pounds, which was one of the (f) considerations of the lease; for that is but a sum of money in the personalty, and affirmed by the King to be paid and satisfied in time before the patent, and so a personal consideration executed; and therewith expressly agrees 37 H. 8. Br. Patents 4.

Note, reader, I have seen divers other letters patent [68 a] made upon like consideration, and havin gauch words, *modo habens & possidens*, and no actual surrender was ever made in any of them. *Vide (g) Berwick's case* in the Fifth Part of my Reports, fol. 93, 94. *Vide* the case of *Alton Woods* in the First Part of my Reports, betwixt which and the case at Bar the difference appears.

[68 b] THE CASE OF THE MARSHALSEA.

Mich. 10 Jacobi 1.

The Court of the Marshalsea has no jurisdiction in *assumpsit*, where neither the plaintiff nor defendant is of the King's Household.

And if in such case judgment has been obtained against the principal, and one of the bail is arrested by process out of the Marshalsea, such bail may maintain an action for false imprisonment against the party who sued, the Marshal who directed the execution of the process, and the officer who executed the same.

What jurisdiction the Court of Marshalsea had at the common law before the Act "Articuli super Chartas," and in what actions, and to what places and persons their jurisdiction extended.

(a) Co. Lit. 338. a. 2 Roll. 496. *Ant.* 52. b. Dall. 74. Perk. sect. 617. 14 H. 8. 15. a. Br. Lease 14. 2 Roll. Rep. 406. 6 Co. 69. b. 37 H. 8. 18. a. b. 194. b. Br. Surrender 14. 35. 2 Co. 17. b. 7 Co. 38. a. Kel. 70. b. 21 H. 7. 5. a. b. Br. Estoppel 210.

(b) 11 Co. 11. a. 8 Co. 56. a. 167. a. 77. a. Kel. 175. a. 198. a. 3 Leon. 243. 2 Sid. 141. 2 Roll. 200. Plo. 32. a. 126. a. 143. b. Hard. 500. Fitz. Grant 29. Br. Exemp. 9. 1 Co. 49. a. 2 R. 3. 4. a. b.

(c) 2 Roll. 200. 6 Co. 6. a. 3 Bul. 6. 2 Inst. 497.

(d) 2 Roll. 199.

(e) 2 Roll. 206.

(f) Hob. 222. Plow. 455. a. 5 Co. 94. a.

(g) 5 Co. 93. b. 1 Co. 43. b. Moor 393. 2 Roll. Rep. 173. Davis 40. Hob. 204. 3 Keb. 414. Style 189. Hard. 499. Lane 11.

When a Court has jurisdiction of the cause, and proceeds *inverso ordine* or erroneously, no action lies against the party who sues, or the officer or minister of the Court, who executes the precept or process of the Court; but when the Court has not jurisdiction of the cause, the whole proceeding is *coram non iudice*, and an action will lie against them, without any regard of the precept or process.

*Of the action of *assumpsit*,* S. C. [1 Brownl. 199. 2 Brownl. 124].

2 Inst. 462. 548. 4 Inst. 130. 1 Bulstr. 207. Carthew 190. Skinner 445. 470, &c. Rep. Q. A. 105.

Richard Hall brought an action of trespass of assault, battery, wounding and false imprisonment against William Stanley, William Richardson, and Roger Cante, that they 1 Jan. anno 7 Jacobi Regis, did assault, beat, wound, and imprison, and in prison detain for the space of three months, &c. The defendants as to all the trespass, but the assault and imprisonment, and detaining of him in prison, pleaded not guilty; and as to the said assault and imprisonment, &c. the said William Stanley and William Richardson said, *quod Curia dom' Regis, vocal' Curia Marischalcie hospitii dom' Regis, est antiqua Curia ipsius dom' Regis et progenitorum suorum regum Angliæ, & quod eadem Curia tenetur, & a tempore cujus contrar' memoria hominum non existit tenebatur, & teneri consuevit infra virgam, &c. coram Seneschallo Curie Marischalcie & Marischallo hospitii dom' Regis pro tempore existen'*, and that the same Court from time whereof, &c. had jurisdiction to hold pleas of trespass, and trespass on the case, *infra hospitium præd' et infra virgam ejusdem hospitii fact'* and by all the said time within the said Court there were *tam quidam Mariscall' Marischalcie hospitii præd' quam quidam officarii (de le Baston) of the staff, infra virgam hospitii dicti dom' Regis, qui quidem Marischall', Marischalcie hospitii præd' et officarii of the staff pro tempore existen' sunt et per totum idem tempus fuerunt officarii et ministri Cur' præd' et quod omnia brevia & præcepta ejusdem Cur' dirigenda sunt, et per totum tempus præd' direct' & dirigi usitat' fuerunt eidem Marischallo Marischalcie, quod ipse idem Marischall' Marischalcie per se & præd' officarii of the staff, & per ejus mandat' ore tenus [69 a] fact', habent & a toto tempore supradict' habuer' & habere consuever' executionem & retorn' omnium & omnimodorum brevium, præcept' & warrant' quorumcunque a Curia præd' emanant' Marischallo Marischalcie præd' direct'*; & *idem Williel', Williel', et Rogerus ulterius dicunt quod in Curia præd' habetur & toto tempore supradicto habebatur talis consuetudo, viz. quod si aliqua persona existen' def' in aliquo placito transgr' in eadem Curia penden' & in custodiâ Marischalli Mar' Hospitii existen' fuit tradit' in bail'*, and prescribed to let the defendant to bail; and that the said William Richardson before the trespass, and yet is Marshal of the Marshalsea of the household, and the said William Stanley, officer of the staff, and the said Roger Cante before the trespass, *sc. 21 Jan. 5 Jac. Reg. in the said Court of Marshalsea of the household, before Thomas Warre, Esq. then Steward of the said Court, and Thomas Vavasor, Knight, then Marshal of the said household at Southwark, within the county of Surry, within the verge, &c. exhibited a bill against one Thomas Ownstead then in the custody of the Marshal of the Marshalsea of the said household, of a plea of trespass upon the case, and declared, that the said Thomas was indebted to the said Roger in 80l. for divers sums of money by the said Thomas to the said Roger due, and so being indebted to the said Thomas 1 Jan. 5 Jac. Reg. at Islington within the verge (A) promised to pay the said Roger the said 80l. upon request, which he had not done, &c. whereupon the said Thomas was let to bail, and the said Richard Hall and one Richard Petty became his bail: to which declaration the said Thomas Ownstead pleaded non assumpsit, &c. which issue was tried for the plaintiff, and damages and costs assessed, whereupon the plaintiff in the same Court had judgment, the plaintiff upon that judgment sued forth a precept in the nature of a cap' against the said Thomas Ownstead, directed to the Marshal of the Marshalsea of the household, who returned non est inventus; whereupon the then plaintiff sued forth a precept in the nature of a cap'. to take the body of the said Thomas Ownstead, or of Richard Hall and Richard*

(A) Where a party who was plaintiff below justifies under process of an Inferior Court, it is necessary to set forth in his plea that the cause of action arose within the jurisdiction of the Court. *Evans v. Munkley*, 4 Taunt. 48. and *vid. Briscoe v. Stephens*, 2 Bing. 213.

Petty, according to the custom of the said Court, *ad satisfaciend'*, &c. directed to the Marshal of the Marshalsea of the said household, by force whereof the said Marshal of the Marshalsea *ore tenus* commanded the said William Stanley to execute the said writ, by virtue whereof he arrested *infra virgam*, &c. the body of the said Richard Hall, and delivered him to the said William Richardson, Marshal, &c. in execution, &c. who detained him in the prison of the Marshalsea at Southwark *infra virgam* in execution, &c. The plaintiff replied and said, *quod nec præd' Rogerus Cante in placito præd' querens nec prædict' Thomas Ownstead in placito prædicto def' tempore exhibitionis billæ prædictæ, fuit servus seu servi dicti domini Regis [69 b] seu de hospitio suo præd' existen', &c.* Upon which the defendants did demur in law. And this case was often argued at the Bar, and two points were moved. 1. Whether an action upon the case upon *assumpsit* for payment of a debt being made within the verge, be within the jurisdiction of the Court of Marshalsea. 2. Admitting that it be not, then if the defendants having the warrant of the said Court, shall be punished for a false imprisonment, or not. And much was said by them who were of counsel with the Court of Marshalsea; for the antiquity, honour, and jurisdiction of the Court of Marshalsea; for the antiquity, that it is as ancient as any of the King's Courts, as appears in 4 H. 6. 8. b. and Diversity of Courts, tit. Marshalsea: for the honour, that Fleta. lib. 2. cap. 2. next after the High Court of Parliament, adds, *habet et Curiam suam coram Senescallo suo in aulâ suâ*, &c. and Britton, cap. 1. (which is in the book, spoken in the person of the King) begins with the Court of Marshalsea before any other, in these words, And that the Marshal of our Household hold our place within the verge, &c. And we will, that the Earl of Norfolk by himself or by another knight, be attendant to us and our Steward, to do our commands, and the attachments and executions of our judgments and of our steward, through the verge of our household; wherein it was also observed for the honour of the Court, that the Judges hold the King's place, and that a man of such dignity as the Earl of Norfolk, is attendant to the said Court; and they further said, that this Court was of so high a jurisdiction, that before the statute of 5 E. 3. cap. 2. and 10 E. 3. cap. 2. no writ of error lay of any judgment there given, but in Parliament: and by the same statutes their errors shall be examined and redressed in the King's Bench. And, as it appears by Fleta, this Court of ancient time, for the greater honour thereof, was held *in aulâ Regis*, within the hall of the King's honourable household.

And as to the jurisdiction, they said, that before the statute of Articuli super Chartas, cap. 3. the Court of Marshalsea had jurisdiction within the verge of pleas of the Crown or criminal causes, and of all common pleas, real, personal and mixed, and that before the said statute, the Steward and Marshal of the King's Household used to hold all the pleas aforesaid within the verge, although none of the parties were of the King's Household, and now the said Act has restrained them to three actions only, *sc.* contracts, covenants, and trespasses, and that in three distinct manners, *sc.* In contracts and covenants, when both are of the household. 2. In trespass, when either party [70 a] is of the household. 3. Of other trespasses done within the verge, when neither of the parties is of the household, and that stands with the words of the said Act, *sc.* "but only of trespass of the household, and of other trespasses done within the verge, and the contracts and covenants which any of the King's Household has made to another of the same household;" so that by express words they have power not only of trespass of the household, but also of other trespasses within the verge, and that the later words, "which any of the household, &c. have made to another of the same household," shall have relation only to contracts and covenants, and not to the clause concerning trespasses, for then these words "(and of other trespasses done within the verge)" are void; for it speaks first of trespasses of the household, and then if the later clause shall have relation to the clause of trespass, the same clause "(and of other trespasses done within the verge)" will be void & *glossa viperina est quæ corrodit viscera testis*. An they strongly relied upon an Act of Parliament made within two years after the said Act of 28 E. 1. *sc. an' (a)* 30 E. 1. not printed, but remaining in the Treasury, which is a good exposition of the said former Act; by which it is enacted, that where before the Steward and Marshal, the Court being many

times near the City of London, some inquests are taken of trespasses, and other things done within the said city, betwixt some of the same city only, and betwixt them and foreigners jointly, or betwixt foreigners; and the conusance of which trespasses and other things belongs to the Steward and Marshal by reason of the verge, that all such inquests shall be taken within the City of London, and not elsewhere; upon which it was inferred, that of all trespasses done within the verge betwixt what persons soever, the conusance belongs to the Steward and Marshal of the Houshold, which is an exposition of the High Court of Parliament, & (b) *contemporanea expositio est fortissima in lege*: so that as well before the statute of 28 E. 1. as by the words of the same statute, and by the Act of 30 E. 1. the Steward and Marshal of the Houshold have jurisdiction to determine all pleas of trespass betwixt any persons whatsoever. And they cited also the statutes of 5 E. 3. cap. 2. and 10 E. 3. cap. 3. by which it appears, that the Court has jurisdiction not only of trespasses of the houshold, but also of other trespasses. And they held that this word [trespass] shall be extended beneficially for the jurisdiction of the said Court, because their ancient jurisdiction was so much restrained by the said Act, and therefore they conceived that all actions, the entry whereof is in *placito transgres*, &c. shall be within this word [trespass]. And therefore [70 b] pleas of *ejectione firmæ*, *trespas quare clausum fregit*, of goods taken away, assault, battery, wounding, trespass upon the case, upon trover and *assumpsit*, and other trespasses upon the case, shall be taken within this word [trespass], and the jurisdiction thereof belongs to the Steward and Marshal of the Houshold, though none of the parties are of the King's Houshold: and they concluded that infinite precedents might be shewed at all times after the making of the said Act of 28 E. 1. That they have held pleas of trespass, as well trespass upon the case, as other trespasses within the verge although neither of the parties was of the King's Houshold, (e) & *optimus legum interpres consuetudo*.

And as to the other point, admitting the Court had not jurisdiction of the cause, yet the proceeding in it (being a Court of Record) is not void, but voidable by writ of error. Also the Marshal of the Marshalsea of the Houshold, and the officer of the staff, are officers and ministers of the Court, and it would be against reason to punish them for executing the precept and warrant of the Court, when if they had refused, the Court would have punished them for their disobedience, and therefore the rule is, *quicumque jussu judicis aliquid fecerit, non videtur dolo malo fecisse, quia parere necesse est*, and in 26 E. 3. 70. b. there it is taken for an maxim, that the thing which an officer doth by warrant or command of a Court, cannot be said against the peace: and Doct. & Stud. 150. the King's officers are bound to execute the King's writs at their peril: and they cited and strongly urged the book in 7 E. 3. 23. b. and 24. a. where Alice brought an action of trespass against one William, of false imprisonment: the defendant said, that before the imprisonment it was commanded in the Marshalsea, that if any woman followed the Houshold of our lord the King, she should be taken and imprisoned, and this Alice followed the Houshold of the King; wherefore John Claydon then Marshal commanded this William, who is gaoler, to take her; wherefore he took her by his commandment, and for such cause, and we do not conceive that she can assign any wrong in our person, and there the rule of the book is, that William, the defendant, did no wrong, though he received her, whether the cause were allowable or not; for he ought to be obedient to his Sovereign; but the gaoler ought always to receive whomsoever is sent to him by his Sovereign, be the cause of the taking allowable or not; and there issue was taken, whether the defendant had the plaintiff of the delivery of the Marshal. So in the case at Bar, the officers of the Court are not to dispute their authority, but ought to be obedient, and execute the warrants and commands of the Judges of the Court: and upon this ground are the [71 a] books in 8 E. 3. 38. 17 E. 3. 66. 19 E. 3. *Quare non admisit* 7 Plo. Com. *Morgan's case*, 12, 13. 7 H. 4. 27. 11 H. 4. 35. 9 H. 6. 20. 2 R. 3. 10. 21 H. 7. 22. 14 H. 8. 16. *Vide temp.* E. 1. Assise 402. 32 E. 1. *ibid.* 378. 17 E. 2. Ass. 373. 19 E. 3. *Scire facias* 12. 31 Ass. 19. 10 E. 3. 47. 14 H. 4. 24. 21 E. 4. 66. 21 H. 6. 36. 21 H. 6. *Trespass* 50.

(b) Cart. 20. 2 Inst. 11. 4 Inst. 138.

(e) 2 Co. 81. a. 3 Inst. 18.

But upon solemn argument at the Bench it was unanimously resolved, that judgment should be given against the defendants.

And as to the first point, it was divided into five parts. 1. What jurisdiction the Court of Marshalsea had at the common law before the Act of Articuli super Chartas, anno 28 E. 1. and therein the extent of their jurisdiction was considered. Sc. 1. In what actions the Court had jurisdiction. 2. To what place their jurisdiction was circumscribed, and to what persons their jurisdiction extended (B).

2. The reasons why the common law gave them, as Judges of the Court of Marshalsea, such particular and limited jurisdiction.

3. Consideration was had of the Act of Articuli super Chartas and therein three points were discussed. 1. Why this Act was called Articuli super Chartas. 2. What manner of Act it was, whether introductory of a new law, or declaratory of the old.—3. The several parts of the Act were considered.

4. The authorities of law in all successions of ages since the said Act.

5. The nature of this action upon the case *sur assumpsit*.

As to the first, it is to be known, that the Steward and Marshal of the King's Household had, before the said Act, two distinct authorities; one, they had such general authority in effect as justices in eyre had, for they were the vicegerents in part of the Chief Justice of England within the verge: also the Steward and Marshal had another authority, *sc.* to hold the Court of Marshalsea, the title of which was, *Plac' coronæ aulæ hospitii dom' Regis coram Seneschallo & Marischallo*. By force of their first authority, they might hold all manner of pleas of the Crown, and of Common Pleas as well real and mixed, as personal, and that appears by divers ancient precepts of summons which they used to direct to sheriffs, &c. to cause to come before them all pleas, &c. the form of which was such; *Robertus filius Johannis miles, Seneschallus hospitii domini Regis vic' S. salutem: mandamus quod ven' fac' coram nobis tali die ubicunque dom' Rex tunc fuerit in ballivâ tuâ omnes assisas novæ [71 b] disseisinæ mortis antecessoris, ultimæ presentis, magnas assisas, & omnes juratas, inquisitiones & attinctas & omnia placit' de dote unde mulieres nihil habent & quæ summ' sunt coram Justic' Regis ad primas assisas cum in partes illas venerint, immo & omnes assisas illas et placita illa, juratas, inquisitiones & attinctas illas quæ coram Justic' Regis ad assisas capiendas in ballivâ vestrâ assignatis fuerint attaminatæ & non finitæ. Et partibus diem illum præfixis quod tunc sit ibi assisas illas et placita illa, juratas et inquisitiones et attinctas illas in eodem statu quo remanserunt coram præfat' Justic' prosecut' si voluerint. Venire etiam fac' coram nob' dictis die & loco, omnes prisiones & manucaptos de ballivâ vestrâ, et omnia attachiamenta quæ pertinent ad gaolam deliberandam. Fac' etiam proclamari et sciri per totam ballivam vestram quod omnes liberi et quatuor homines et prepositus de villatis quar' interfuerint quod tunc sint ad deliberationem prædictam. Et habeant' ibi recognitores, nomina pleg', summ' et hoc breve.*

And that they had such general authority, appears in Fleta, who wrote before the said Act of 28 E. 1. lib. 2. cap. 2. *Habet et Rex Curiam suam coram Seneschallo suo in aulâ suâ, qui jam tenet locum capitalis Justiciarii Regis, de quo sit mentio in communi brevi de hom' repl', qui proprias causas Regis terminari consuevit, et falsum judicium ad veritatem revocare et conquerentibus absque brevi justitiam exhibere; cujus vices gerit in parte idem Seneschallus hospitii Regis, cujus interest de omnibus actionibus contra pacem infra metas hospitii, &c. recenter illatis etiam sine brevi, &c. auditis queremoniis injuriarum in aulâ Regis audire et terminare, assumpt' sibi camerar', hostiar', vel Marischallo aulæ, militibus, vel aliquibus eorum, si omnes interesse non possunt. Et cap. 3. Habet Seneschallus ex virtute officii sui prædictam potestatem procedendi ad utlagationes et bella injungendi, et omnia et singula faciend' quæ ad justiciarios itinerantes, prout superius dictum est, pertinent faciend', hoc tantum excepto quod de libero tenemento intrmittere non debet sine brevi.* And there it appears, that the Steward, &c. held this Court in aulâ Regis; and what authority justices in eyre had to hold pleas of the Crown, and all common pleas, real, mixed, and personal, you may see in the Mirror of Justices, cap. 2. sect. 3. where it is said, the Kings do right to all by their Justices Commissioners errants assigned to all pleas.—*Vide* the statute of Westm. 2. cap. 11. Bracton, lib. 3. cap. 7. fol. 105. &c. and 115. b. Britton, cap. 1. 6. E. 2. Assise Bro. 496. 4. E. 3. 41, 42 6 E. 3. 55.

(B) *Vid.* Com. Dig. Courts, F. Bac. Ab. Marshalsea and Palace Court. Vin. Ab. Marshal and Marshalsea, A. 2. 3 Black. Comm. 75.

27 Ass. plac. 1. 15 H. 7. 5. b. And it is to be observed, that he, who is prisoner to the King's Bench, is in *custodia Mareschalli Mareschalciæ Domini* [72 a] *Regis*; and he who is prisoner to the Marshalsea of the Houshold, is in *Custodia Maresc' Mareschalciæ hospitii dom' Regis*. And thereby also it appears, that the Steward, &c. *vices gerebat Capitalis Justiciarii*. And therewith agrees Britt. c. 1. who wrote in 5 E. 1. which was before the stat. of Articuli sup' Chartas; and that the Marshal of our Houshold, hold our place within the verge of our household, and that his office extends itself to hear and determine the presentments and articles of our Crown when we shall see it good. And note that these articles were those which justices in eyre charged the jury to enquire of, as it appears in Bracton, lib. 3 tract. 2 cap. 1. fol. 116. And therewith agrees the Mirror of Justices, which book was also wrote before the said Act of 28 E. 1. To the offices of (those) the Chief Justice belongs false judgment and errors, &c. and so it belongs to their office to hear and determine all plaints made of personal wrongs within twelve miles round about the King, and the gaol-delivery of prisoners deliverable, and to determine as much as is to be determined by justices itinerants. And Bracton also, who likewise wrote before the said Act, lib. 3. de Actionibus, cap. 7. fol. 105. *Habet Rex plures curias in quibus diverse actiones terminantur, et illarum Cur' habet unam propriam sicut Aulam regiam, et Justiciar' Capitales qui proprias causas Regis terminant, et aliorum, perquerelam, vel per privilegium, vel per libertatem.*

As to the other authority, the (a) Steward and Marshal are Judges of the Marshalsea of the King's Houshold, and this Court at the common law had a particular and limited jurisdiction: 1. In respect of the causes; for they as Judges of this Court had jurisdiction only of pleas of the Crown, and of (b) three particular common pleas, *sc.* pleas of debt, covenant, and trespass *vi et armis*, as of battery, goods taken away, but not of trespass *Quare clausum fregit*, *ejectione firmæ*, action on the case, *detinue*, nor any other personal action, nor of any real or mixt action: 2. In respect of the persons; for in (c) debt and covenant both the parties ought to be of the King's Houshold, but in trespass it was sufficient if one of the parties was of the King's Houshold; and this also appears by Fleta lib. 2. cap. 3. *Si autem de aliquo familiari Regis* (i. any of the King's Houshold) *fiat queremonia, primo summoneatur, 2. attachietur, 3. capiatur, &c.* whereby it appears, that the trespass ought to be *vi et armis*, and not upon the case, otherwise a (d) *capias* lay not at the common law, and also that it was sufficient if one of the parties was of the King's Houshold. But forasmuch as the Steward and Marshal had at the common law these authorities, the one general, and the other particular, and both Courts were [72 b] then held in *aulâ Regis*; that they had the general authority but at will, and had a fixed estate for their lives in the other, they drew to the Court of their Marshalsea, by colour of the said general authority many causes which did not by law belong to the jurisdiction of the said Court. 3. In respect of the place to which their jurisdiction was circumscribed; and that appears by Fleta, lib. 2. cap. 2. *Infra metas hospitii continentes* (a) 12. *leucas in circuitu*, and the Mirror of Justices, *ubi supra*. And this was the law before the statute of (b) 13 R. 2. cap. 3. but that limits the twelve miles to be computed from the King's lodgings. And the Steward and Marshal, being so restrained, invented divers means and devices to enlarge their jurisdiction, and to encroach upon the common law; and therefore if in the bond or covenant, &c. mention was made of distress of the Steward or Marshal of the King's Houshold, or one of them, they would hold plea thereof, although the bond or covenant was made out of the verge. And also they used to take consuance of debts and other things, where the parties were not of the King's Houshold, and that appears by Fleta, lib. 2. cap. 3. *Tunc demum de obligationibus et contractibus, in quibus debitores ad districtionem Seneschalli et Mareschalli domini Regis sponte se obligaverunt. "Et paulo post, Et nota, quod in obligatione omni in quâ fit mentio de districtione Seneschalli*

(a) 6 Co. 12. a. F. N. B. 241 b. 19 E. 4. 8. b. 20 E. 4. 16. b. Cr. Jac. 314. 1 Bulstr. 210.

(b) 2 Inst. 548. Postea 74. b.

(c) 6 Co. 20. b.

(d) 3 Co. 12. a.

(a) 4 Co. 47. a. Postea 74. a. F. N. B. 241. b.

(b) 1 Bulstr. 209.

et Mareschalli hospitii Regis vel eorum alterius tantum, audit' sunt partes, loquela et terminala sine brevi ubicunque se contraxerint infra virgatam vel extra coram sen' nisi loquela liber' tangat ten' ejus vel pertinent', nec obstat petenti exceptio de contractu facto extra virgatam, ut inter placita Petri de Chamnet anno Regis regni Ed. 18. inter Henr' de Wotton petentem, et Ranulfum Foleschanks obligat' præfat' H. in necessariis pro victu et vestitu et hujusmodi ad valens' 20 li. per an' suo perpetuo inveniend' pro quad' terra in D. et quadam balliva in S. et unde item R. obligavit se in Lond' districtioni Sen' et Mar' Regis anno 15, Rege tunc existente in Vascon'. Cui exceptione de noni nfra virgatam non allocata, petiit judicium si de libero ten' vel ejus pertinen' debuit sine brevi Regis respondere, cum idem H. petit certum redditum ad terminum vite sue: et quia voluit sic obligari, nec volenti et scienti fit injuria †: considerat' fuit per plures justic' qui aderant, ex quo necessaria illa proveniebant tanquam de Camera et non de loco certo de quo potuit visus fieri, quod exceptio præd' locum non haberet, quod aliud diceret et responderet, vel pro indefenso et convicto haberetur. Another invention ad ampliandam jurisdictionem suam was, that although none of the parties were of the King's Houshold, yet they would name them in the declaration and plea of the King's Houshold, and [73 a] so as they conceived, to estop the party to contradict it. But to conclude this point, it appears to you, good reader, that to know what the law was before the Act of 28 E. 1. how necessary the authorities of the said ancient books of the (c) Mirror of Justices, of Bracton, Britton, and Fleta are to discuss this point; and although perhaps one may know the law upon the ancient statutes, yet he will never know the true reason of the interpretation of them, unless he knows what the law was before the making of them; and therefore it is true, quod multa ignoramus quæ nobis non laterent si veterum lectio fuit nobis familiaris.

As to the second point, the ancient style of the Court of the Marshalsea was, (d) *placita Coronæ aulæ hospitii dom' Reg' tenta' coram, &c.* (C) by which words *aulæ hospitii*, it is proved, that at least one of the parties ought to be of the King's Houshold for how can the words be *aulæ hospitii dom' Reg'*, when none of the parties is of the King's Houshold? and it was observed, that those who are of the King's Houshold are called *aulicii*, and that is the reason that it is not necessary in suits there before the Steward and Marshal, (a) to allege that the plaintiff or defendant was of the King's Houshold, for the style of the said Court, as appears afterwards by many authorities, implies it. The second reason is, because the proceedings in the same Court is by bill in respect of the privilege of the parties (D), and not by original; and the Court of King's Bench cannot hold any common plea by bill without privilege of the Court. The third reason, that the service and attendance of the King's servants were so requisite and necessary to the King, that the pleas in the said Court should be rather discontinued by his removal out of the verge, than he should lose the attendance of his servants: and if they might hold pleas between mere foreigners, what reason could there be that the pleas should be discontinued by the King's removal? and why should the Judges of the King's Houshold decide causes, when none of the parties is of the King's Houshold? (b) *Jurisdictio est potestas de publico introducta cum necessitate jurislicendi.* And that agrees well when the parties are of the houshold, for the necessity of the King's service, but not when none of the parties is of the same houshold. In Mich. 42 and 43 Eliz. in the King's Bench, (c) Hall brought a writ of error against Jones of a judgment given in the court of pipowders of the market in the City

† Note, the proceedings here were by consent, as being more expeditious, &c. than in other Courts; and in this case had even the Judges' approbation. [Note to former edition.]

(c) 8 Co. 35. a. Plow. 357. a.

(d) 6 Co. 21. a. Antea 71. a. Doct. pl. 87. 2 Inst. 549.

(c) The Marshal of the King is the Marshal of the King's Bench, nobody else can be understood: the *Mareschallus hospitii* is never spoken of without the addition of *hospitii*. *Snow v. Firebrass*, 2 Salk. 439. S. C. 2. L. Raym. 804.

(a) Doct. pl. 87. 247.

(D) In the Marshalsea Court, the plaint is the commencement of the action. *Ward v. Honeywood*, Doug. 61.

(b) 1 Bulst. 210.

(c) Moor 623, 624. 4 Inst. 272. Cro. El. 773. 1 Roll. 544. 2 Bulst. 21.

K. B. VI.—33*

of Gloucester, for Jones Register to the Bishop of Gloucester, because Hall had published slanderous words of him, *sc.* "That Mr Jones and his clerks have by colour of his office extorted and gotten 300l. per annum, by unlawful means for many years together, above their ordinary fees, for proving of testaments, and granting of administrations," and the judgment was reversed for two errors. 1. Because the said words did not concern any matter (*d*) touching the market, and therefore the Court had no jurisdiction of them; [73 b] but if one slanders any one who trades in the market, in any thing which (*e*) concerns his trade, there an action lies well. 2. It appears in the declaration that the words were spoken (*f*) before the market, and not in it: for as the Court had no (*g*) jurisdiction but for things concerning the market, so it had no jurisdiction for matters concerning the market unless they were done in the market. *Vide* 2 & 3 P. & M. (*h*) Dy. 132. *Vide* Bract. 334. (*i*) 13 E. 4. 8. b. 7 H. 6. 19. 13 H. 7. 19. b. the stat. of 27 H. 6. c. 5. 17 E. 4. c. 2. & 1 R. 3. 6. *Pari ratione* it would be against reason that pleas should be held *coram Senesch' & Maresch' hospiti' dom' Reg'* of a thing which doth not concern any of the household. The fourth reason *ex congruo*, it would not be seemly that any carman or other mechanical person should sue another in the same Court, and draw them *in aulam Regis*, where the Court was originally held, for they have not *vestimenta aulica*; and therefore it is recorded by St. Luke the Ev. c. 7. v. 25. *Dixit ad turbam quid exiistis videre hominem molliu' vestimentis indutum? Ecce qui in vesta preciosa sunt et in deliciis agunt, in domib' reguin sunt.* And the common law regards conveniency, and doth not allow *aliquid indecorum*, nor that which is done *contra bonos mores*.—5. At the same Parliament, *scil' an'* (*a*) 28 E. 1. c. 5. it was enacted, that the Chancellor and Justices of his Bench should follow him, so that he might have at all times near him some that be learned in the law, which be able duly to order all such matters as shall come to the Court at all times when need shall require, and it appears by divers records subsequent, that the Chancellor and the Judges after that Act had their purveyors, &c. and that accordingly purveyance was made for them, as appears in Rot. Pat. 10 E. 2. parte 2. Memb. 20. & 2 E. 3. parte 1. Memb. 33. &c. till 4 E. 3. at which time the Court of King's Bench became resident, and all the pleas there being *coram Rege*: and by the Act of 4 E. 3. c. 3. it was prohibited, that no purveyance should be taken great or small, but only that the purveyors of the King, Queen, and their children, take not corn, &c. But by the said Act of 28 E. 1. c. 5. the general authority of the Steward vanished, inasmuch as having regard to the same, they were but the vicegerents of the Chief Justice when he himself was present, (*b*) *in presentia majoris cessat potestas minoris*; and yet the under colour of their former general authority, they encroached much upon the common law. And it was observed, that the Court of Marshalsea of the King's House never held any pleas of the Crown after the making that Act, because the Justices of the King's Bench were to follow the King, and therefore they have used to hear and determine pleas of the Crown within the verge by force of a commission of oyer and terminer, in vacation time, for in (*c*) term time when the King's Bench sits in the same county, all commissions cease. *Vide Katherine Wrote's case* in the Fourth Part of my Reports, fol. 47. a. 6. [74 a] The reason why this Court was limited to these three actions was, because one of the household who lives on his salary or pension, has often occasion to borrow money, and make covenants with others of the same household for apparel and other necessities; and for trespass *vi et arm'* as battery, carrying away of goods, &c. they have jurisdiction for the preservation of the peace, as aforesaid. 7. The reason why

(*d*) 4 Inst. 272. Moor 624. Cro. El. 773. 1 Roll. 544. 2 Bulst. 21. 24. Cro. Jac. 313. Moor. 830, 831. Cro. Car. 46.

(*e*) 2 Inst. 272. 2 Bulst. 21.

(*f*) Moor 624. 4 Inst. 272. 2 Bulst. 21.

(*g*) Cro. El. 773.

(*h*) Dy. 132. pl. 80. Jenk. Cent. 211. 2 Bulst. 21. 23. Moor. 830. 1 Roll. 544. Finch Ley 132. a. 4 Inst. 272. Kelw. 99. a.

(*i*) Fitz. Cor. 3. Br. Error 171.

(*a*) Rastal Chancery 1. 2 Inst. 551.

(*b*) 9 Co. 118. b. 2 Inst. 26. 166.

(*c*) 9 Co. 118. b. 121. a.

the bounds of the Marshalsea are called the verge, and that its jurisdiction is confined within the verge, is, because the Marshal *portat virgam (quæ signal pacem) coram Rege per spatium* (d) 12 *leucarum etc. et de virg' predict' dicitur virgata*, and beyond that the Steward and Marshal never had jurisdiction, and that appears in *Fleta* lib. 2. c. 4.

As to the third point, *sc.* the consideration touching the Act of Articuli (e) super Chartas, c. 3. it was resolved, that Articuli super Chartas is as much as to say, (f) *explanaciones super chartas*; and the charters here mentioned are the Great Charter and the Charter of the Forest, and so it appears by the preamble, Because the points of the Great Charter of Liberties, and of the Forest, &c. and in *Pierce de Saltmarsh's case*, the book saith, that Herle, Chief Justice, in 6 E. 3. 33. b. ordered the explanations upon the charters, *sc.* the 11th chapter of Champerty to be read. By which it appears, that *articuli* in this case signifies *explanaciones*; and some say, *quod dicuntur articuli quia arctant ad obedientiam*: but then it will be asked in what part of Magna Charta can one find any thing concerning the Court of Marshalsea? To that it was answered, that the (a) 29th chapter of Magna Charta extends to it, for there it is enacted *quod nullus liber homo capiatur, vel imprisonetur, aut disseisietur de liber' ten'to suo, vel de libertatibus, vel liber' consuetudinib' suis, aut ullagat' aut exuletur, aut aliquo modo destruatur, nec super eum ibimus, nec super eum mittemus nisi per legale* (b) *judic' parium suorum aut per legem terræ*; by which Act every arrest or imprisonment, and every oppression *contra legem terræ* is prohibited. Then, if any against the law usurp any jurisdiction, and by colour thereof arrest or imprison a man, or in any manner by colour of an usurped authority oppress any man (which is a manner of destruction) against the law, he may be punished by that statute: and because the Steward and Marshal of the Court of the Marshalsea had encroached to them jurisdiction in divers causes which did not belong to them, and by colour thereof awarded precepts sometimes to arrest the body of the defendant, and sometimes by colour of execution to sell, &c. the goods and chattels of the defendant against law, which is an oppression by colour of justice, and a manner of destruction, for that reason this third chapter was enacted for explanation of the said Great Charter, as to the jurisdiction of the said Court of the Marshalsea. So that this Act of Articuli super Chartas, is not introductory of [74 b] a new law, but an explanation of the Great Charter, which was declarative of the ancient common law of England. But it appears also by this third chapter, the parts whereof are now to be considered. This chapter concerning the Court of the Marshalsea is divided into two general parts. *sc.* Into the preamble, and the body of the Act: in the preamble three things are propounded to be remedied by the body of the Act. 1. Of the estates of the Stewards and Marshals, *id est*, concerning the jurisdiction by force of their offices in which they have estates, *sc.* for their lives within the Court of the Marshalsea. 2. Of the pleas which they ought to hold, by which it appears that this chapter was declarative, for the intent of this chapter was to reduce the Court of the Marshalsea to its true and lawful institution, which this word (ought) imports, and therefore this Act demonstrates what pleas they ought to hold, which well agrees with the title Articuli super Chartas, and with the book of 6 E. 3. (c) the explanations of the charter, *i.e.* of the common law. The third is, how they ought to hold the pleas. The body of the Act pursues the parts of the preamble; and first the whole purview thereof extends only to the Court of the Marshalsea of the King's House. As to the pleas which they ought to hold, the body of the Act has made a declaration of three points. 1. Of the causes. 2. Of the persons. 3. Of the place. For these causes, the purview of the Act is in the negative, in part absolutely, and

(d) 4 Co. 47. a. *Antea* 72. b. F. N. B. 241. b.

(e) 2 Inst. 547. 3 Inst. 134. 1 Bulst. 201. 209, 210, 211, 212. 2 Leon. 160. 4 Co. 46. a. 6 Co. 12. a. 20. b. *Antea* 71. a. 5 E. 4. 129. a. Br. Action sur le Stat. 38. 49. 10 H. 6. 13. a. Reg. 185. a. 191. b. F. N. B. 241. b. Rast. Ent. 433. a.

(f) 2 Inst. 538.

(a) 5 Co. 64. a. 11 Co. 99. a. 2 Bulst. 328. 1 And. 158. 1 Roll. Rep. 225. 4 Leon. 61. 2 Inst. 45, 46.

(b) 2 Inst. 48.

(c) 6 Ed. 3. 33. b.

in part with an exclusion. It is ordained from henceforth, that they hold not plea of freehold, and that is absolute; nor of debt, nor of covenant of the people, but that is with exclusion, first to the causes (a) but only of the trespass of household and of other trespass done within the verge, and of contracts and covenants: so that these words (but only, &c.) reduce, as to the causes, the jurisdiction of the Court to its original institution, *sc.* to actions of trespass, debt, and covenant, and all other pleas are excluded. As to the persons, if this Act had not made any particular declaration, as appears before, they ought to have had the privilege of the house, *sc.* in trespass, where both, or at least one be of the house; and in case of debt and covenant, where both are of the house, and of that also this chapter has made an express declaration. And the exposition in (b) *Michelborn's case* in the Sixth Part of my Reports was affirmed for law: and *vide* there an Act passed both Houses of Parliament, anno 1 R. 2. & *vide inter petitiones Parliam' anno 1 E. 3. Lond' 10.* that there the Steward and Marshal, after the said Act, did encroach to them to hold other pleas than of trespass, debt, and covenant: as to the place, the statute has restrained it to the verge only; and because by colour of certain inventions of the Steward and Marshal *ad ampliandam jurisdictionem suam* as to pleas, persons, and precinct, this chapter has enacted, that from henceforth [75 a] the steward hold not plea of debt or other thing, but of the people of the household, so that the voluntary (c) consueance of debts before the Steward and Marshal by foreigners, did not give the said Court jurisdiction, but as an unjust encroachment upon the common law was ousted by this Act. It is also further enacted, that they shall hold no plea by bond made at the distress of the Steward or of the Marshal; by colour of which, as appears before, they encroached to themselves jurisdiction, not only when the parties had no privilege, but also of causes which did not belong to their jurisdiction, and those also done out of the verge, as appears by that which Fleta has before reported, and who has well expressed the true cause and sense of the two last branches, which of themselves were full of obscurity. As to the third part of the preamble, *sc.* How, &c. the body of the Act has three branches. 1. That they shall implead no plea of trespass, except the party was attached by them. 2. And they shall plead speedily from day to day, so that they may be pleaded and determined before that the King depart out of the bounds of the same verges where the trespass was done. 3. And if so it chance, that they cannot be determined within the bounds of the same verge, the pleas shall (d) cease before the Steward, and the matters be determined at the common law. And it was observed, that although the (e) Steward and Marshal are both Judges, yet in this last clause, as many in Fleta, the Steward is only named, because he was the lawyer, and therefore had the direction of the Court. And the conclusion of the body of the Act, as to these three points, is, and if the Steward or the Marshal do any thing against this ordinance, it shall be held as void. And this Act was of so great profit and consequence, that by the Act of Parliament anno 18 E. 3. cap. 7. it is enacted and commanded to be put in execution

And as to authorities in law, they are copious, and of four several natures. 1. The year-books. 2. Books written of the laws of England. 3. Judgments in Parliament: and all these are *thesauri aperti*. 4. Judicial records and precedents: and these are *thesauri absconditi*. And for direct authority in the point in the year-books, *vide* (a) 6 R. 2. Action sur le Statute pl. ult. 3 H. 6. Estoppel 18. Action sur le Statute 13. 7 H. 8. 30. 10 H. 6. 13. a. 14 H. 6. 6. b. 5 E. 4. 129. a. 19 E. 4. 8. b. 20 E. 4. 16. b. 22 E. 4. 11. 22 E. 4. 16. 22 E. 4. 31. b. *Vide* 48 E. 3. 17. b. & Regist. Original 111. the plaintiff shall never aver †, &c. that the one or other party is of the household *causa qua supra*. Register Original 185 a. *inter brevia de statuto, Rex Sene-*

(a) 6 Co. 20. a.

(b) 6 Co. 20, 21. a.

(c) F. N. B. 242. a.

(d) F. N. B. 241. b.

(e) *Ant.* 72. a. 6 Co. 12. a. F. N. B. 241. b. 19 E. 4. 8. b. 20 E. 4. 16. b. Cro. Jac. 3, 4. 1 Bulstr. 210.

(a) Br. Action sur le stat. 49. *Post.* 77. a.

† *Vide prox. pag.*

schallo et Mareschallo hospitii sui salutem (and recites the said chapter of the statute) & etiam [75 b] *ex gravi querelâ A. de B. accepimus, quod vos ad sectam R. ipsos ad respondendum coram vobis præfat' R. de quadam transgressione, &c. infra virgam nostram apud B. quanquam neuter eorum de eodem hospitio existat, &c. vobis mandamus quod si ita est, tunc placito illo coram vobis ulterius tenend' supersedeat' omnino ipsum B. contra formam ordinationis præd' non molestant' in aliquo, seu gravant'.* Which writ being formed upon the said statute and presently after the making of it, is a manifest proof, that the Court of the Marshalsea cannot hold plea in trespass within the verge if none of the parties are of the King's House. And it is to be observed, that where any statute prohibits any thing, a man may have a *supersedeas* in the nature of a prohibition to any Judge who shall hold plea against any statute, and this appears in many cases in the register *inter brevia de statuto* (E). It is likewise to be observed, that when any statute prohibits any thing, &c. if any one impleads another, although it be in course of a legal proceeding, yet the party grieved shall have an action upon the statute against the party who sues against the statute, (b) although the words of the statute do not give any action to the party, but that is a consequent, and a thing implied in every thing prohibited by any statute (F): and this appears by the said book of (c) 7 H. 6. 30. b. 31. a. where the party grieved had an (d) action upon this very statute, and 4 E. 4. 37. a. b. an action upon the statute of 2 (a) H. 5. c. 7. for not delivering of the libel. The Tales sive Novæ Narrationes, f. 102. a book cited and approved in 39 H. 6. The Diversity of Courts, 102. F. N. B. 241. b. a man shall have an averment in an action brought against him in the Court of the Steward and Marshal, that he was not of the King's Household at the time of the trespass or contract made; or that the plaintiff was not of the King's Household. *Vide* (b) Stanford, lib. 2. c. 5. And this point is resolved by Parliament in 15 (c) H. 6. cap. 1. where it is recited, that the Steward and Marshal of the King's House and their deputies, have held pleas of debt, detinue, and other personal pleas betwixt people which were not of the same house, making mention in their records, that the plaintiffs and defendants were of the same house, and not allowing to the parties defendants their challenges and exceptions by them alleged, that themselves or the plaintiff are not of the same house, against the laws and statutes in those cases made and provided, that they shall not be estopped by such record, &c. but the said defendants shall have their averment to say,

(E) Lord Ellesmere in his Observations p. 12. observes, "In the case of the Marshalsea, he suffereth to fall from him this novelty as a principle, viz. 'and it is to be observed, that where a statute prohibiteth any thing, a man may have a *supersedeas* in nature of a prohibition to any Judge that holdeth plea against any statute.' This rule is known not to be law, for then in the first case, may there a prohibition go out of the K. B. with *teste Edwardo Coke* to the Lord Chancellor, into the Chancery, when the style is *teste meipso*. Besides, the rule is put so indefinitely, as it comprehends no certainty, neither out of what Court such *supersedeas* should go, nor to what Judge spiritual or temporal, and in saying to any Judge, the Lord Chancellor is not excluded, nor the Lords of the Star Chamber, nor the Lord Treasurer, and the Court of Exchequer Chamber, nor the Court of Wards, nor the Court of Dutchy, so as the Chief Justice doth imply tacitly that all this may be prohibited, unto the putting in practice whereof it seemeth this case should be a leading." *Vid.* Com. Dig. Prohib. A. *Ex parte Cowan*, 3 Barn. & Ald. 123.

(b) F. N. B. 160. b. 163. a. 165. b. 166. d. 241. c. 242. a. Dalr. Sh. 121. a. 1 Bulstr. 209. 2 Inst. 55.

(F) Where a statute prohibits a thing and adds no penalty, an action lies for doing against the prohibition of that statute, but that ought to be by an action brought *tam pro Rege quam pro seipso*. *Waterhouse v. Bawde*, Cro. Jac. 134. and *vid.* Com. Dig. Action on Stat. E. 2.

(c) 6 Co. 20. b. Br. Action sur le Stat. 13. Fitz. Bar. 17.

(d) Fitz. Action sur le Stat. 35. Br. Jurisdiet. 97.

(a) 2 H. 5. cap. 3. 12 Co. 61. 13 Co. 42. 3 Bulstr. 5. 120. Reg. 58. a. Cr. Jac. 37. 388. Moor 756.

(b) Stanford Cor. lib. 2. c. 5.

(c) 1 Bulstr. 209. 123. Rast. Marshalsea 7.

that they or the plaintiffs were not of the same household, at the time of such plea or suit commenced, the said record or other matter therein contained notwithstanding. By which Act the said invention to increase their jurisdiction [76 a] was taken away, which was but a declaration of the common law, as appears by the said book in 3 H. 6. Estoppel 18. & 10 H. 6. 13. *Vide* the said Acts of 30 E. 1. 1 E. 3. 1 R. 2. 5 E. 3. 10 E. 3. & 33 H. 8. cap. 12. And it was observed that every Act made concerning the Marshalsea, either restrains or explains their jurisdiction, and no Act adds any thing to it. As to judicial records, it appears in Pasch. 38 E. 3. in the Treasury *coram Rege*, that judgment given in the Marshalsea in an action of detinue, was reversed in the King's Bench, because they had no power to hold plea in such action; and therefore in the said statute of (d) 15 H. 6. in the preamble, the action of detinues is ill recited.

In the Book of Entries, 278. & 128. Conusans 7. & 32 H. 6. *Purchase's (e) case* cited in *Michelborn's case*, which see there to be adjudged in the point.

As to the nature of the action, it was resolved, that as well the common law, as the said Act of 28 E. 1. extended only to trespass *simpliciter*, and not to trespass *secundum quid*, *sc.* upon the case; for these are not actions of trespass without addition, no more than they can hold plea in an action of trespass upon trover or bailment, and conversion or the like, but only of trespass *simpliciter*, *sc. vi et arm'*, and also of such trespass in which any freehold cannot come in debate, as is aforesaid; and according to this resolution it was adjudged in the King's Bench, Hil. 5. Jac. Reg. Rot. 876. in (f) *Jeremy Gray's case*, that judgment given in the Court of the Marshalsea in an action upon the case upon trover and conversion was reversed, because the statute did not extend to trespass upon the case; and therewith also agrees (g) the said case of *Michelborn*. But although this action of *assumpsit* upon (h) general consideration, *quod indebitatus existit*, be against the law, as appears in *Slade's case*, in the Fourth Part of my Reports; yet if they had jurisdiction of the cause, their proceeding therein was not void, but voidable by writ of error. But that shall be spoke to more at large in the second point, which now follows.

2dly. It was resolved, that the action well lies against the defendants: and a difference was taken when a Court has (a) jurisdiction of the cause, and proceeds *inverso ordine* or erroneously, there the party who sues, or the officer or minister of the Court who executes the precept or process of the Court, no action lies against them. But (b) when the Court has not jurisdiction of the cause, there the whole proceeding is *coram non iudice*, and actions will lie against them without any regard of the precept or process (g), and therefore the said rule cited by the other side, *sc. (a) Qui jussu*

(d) 15 H. 6. cap. 1.

(e) 6 Co. 10. Cro. El. 502. 1 Bulst. 208, 209.

(f) 1 Bulst. 207, 208. Godb. 284.

(g) 6 Co. 20. b. Cro. El. 502. 4 Inst. 130. 1 Bulst. 208. 210. 213.

(h) *Postea* 77. a. and notes, *ib.*

(a) Plow. 13. a. 9 Co. 68. a. Raymond 129. 1 Mod. Rep. 173. Hard. 481. Cart. 19. 2 Bulst. 64. Cro. Car. 395. March. 8.

(b) Hard. 478. 481. Godb. 387. Cart. 19. Cro. Jac. 314. 2 Bulst. 64. Lutw. 1560, 1561. Salk. 201, 202.

(a) *Ant.* 70 b.

(g) In *Orby v. Hales*, 1 L. Raym. 3. it was held that if the sheriff discharge a prisoner by virtue of an order made by justices at their quarter sessions, they having no power to make such order, he shall not be liable for an escape. But this case, which is contrary to former cases, has been expressly overruled. *Brown v. Compton*, 8 T. R. 424. and *vid. Colston v. Ross*, Cro. Eliz. 893. Anon. 1 Salk. 273. The distinction here taken by Coke has been recognized as good law at least as far as respects the protection given to the Court and its officers. *Groenvelt v. Burwell*, 1 L. Raym. 471. *Parsons v. Loyd*, 3 Wils. 345. *Perkins v. Proctor*, 2 Wils. 384. And accordingly where the defendant, a vicar general of the bishop, had excommunicated the plaintiff for not taking administration of an intestate's effects, and the citation, by which the plaintiff was cited, was void, and the proceedings thereupon had been set aside, and there was no malice, the subject matter of the judgment being a thing within the

judicii aliquod fecerit (but when he has no jurisdiction, [76 b] *non est judex*) *non videtur dolo malo fecisse, quia parere necesse est*, was well allowed, but it is not of necessity to obey him who is not Judge of the cause, no more than it is a mere stranger, for the rule is, *judicium a non suo judice datum nullius est momenti*. And that fully appears in

defendant's jurisdiction, it was held that no action lay. *Ackerley v. Parkinson*, 3 M. and S. 411.

So in the case of magistrates, if they have no jurisdiction over an offence, and proceed to convict, an action lies against them before the conviction is quashed. *Crepps v. Durden*, Cowp. 640. But if they have jurisdiction over the subject matter, their judgment cannot be examined in an action. *Brittain v. Kinnaird*, 1 Brod. and Bing. 432. S. C. 4 B. Moore, 50. To entitle a party however to bring an action, the want of jurisdiction must appear upon the face of the conviction, for a conviction is conclusive evidence of the facts it alleges, as well in respect of such facts as are necessary to give them jurisdiction, as upon the merits of the conviction. *Gray v. Cookson*, 16 East, 13. *Brittain v. Kinnaird*, *ubi sup.* "It is a general rule and principle of law, that where justices of the peace have an authority given to them by an Act of Parliament, and they appear to have acted within the jurisdiction so given, and to have done all that they are required by the Act to do in order to originate their jurisdiction, a conviction drawn up in due form, and remaining in force, is a protection in any action brought against them for the act so done," per Abbot, C.J. *Baslen v. Carew*, 3 Barn. and Cress. 652. S. C. 5. Dow. & Ryl. 558. If a magistrate has no jurisdiction by reason of the existence of facts which he cannot be supposed to know, but which are peculiarly in the knowledge of the party grieved, no action can be maintained against him if he received no notice of such facts. *Pike v. Carter*, 3 Bing. 78. But if a magistrate, after a regular conviction of a party, proceeds to commit him, an action will lie against him if his warrant of commitment does not shew an offence over which he had jurisdiction. *Wicks v. Clutterbuck*, 2 Bing. 483.

A sheriff is not liable to an action for executing the process of a Court of competent jurisdiction, though there be no cause of action or though the process be erroneous. *Tarlton v. Fisher*, Dougl. 671. *Cameron v. Lightfoot*, 2 Black. 1190. *Wynne v. Boughey*, O. Bridgm. 573. On the contrary he is bound to execute the process of the Court, *Benyon v. Evelyn*, O. Bridgm. 336. *Jackson v. Hunter*, 6 T. R. 73. And the sheriff cannot take advantage of an error in process, in an action brought against him for an escape. *Drury's case*, 8 Co. 142. b. Thus, where the plaintiff had judgment for 55l. 10s. and the *ca. sa.* upon which the defendant was taken in execution, was only for 51l. 2s. this mistake is not assignable for error by the sheriff. *Jacques v. Cesar*, 2 Saund. 100. So upon an escape from the fleet of a prisoner taken in execution by the sheriff, when the writ of *capias* was informal, the warden is liable to the debt and costs. *Wynne v. Boughey*, O. Bridgm. 570. And in an action for an escape on *mesne* process out of an inferior Court, against the bailiff, the defendant cannot take advantage of any error in the process below, although the defendant below might have availed himself of it. *Bull v. Steward*, 1 Wils. 255. So in an action for rescuing a debtor taken upon *mesne* process sued out of the Palace Court, it is not a sufficient ground to arrest the judgment, that it was not alleged that the cause of action in the inferior Court arose within the jurisdiction, or that it was not alleged that the party below did not appear at the return of the writ. *Bently v. Donelley*, 8 T. R. 127. *Vid. Bromfield v. Jones*, 4 Barn. & Cress. 385. The difference is where the judgment is merely void or where it is only erroneous, and that depends on another distinction, viz. where the Court in which judgment was obtained had cognizance of the cause, and where not. *Gold v. Strole*, Carth. 148. S. C. 3 Mod. 324. and *vid. Ognell v. Paston*, Cro. Eliz. 165. *Weaver v. Clifford*, 2 Bulstr. 62. Cro. Jac. 3. *Burton v. Eyre*, Cro. Jac. 288. Although the sheriff is bound to execute the process of the Court, yet if a writ be directed to one who is not the officer of the Court, he is not bound to execute it, and if he does he will be liable to an action. Therefore where a writ of *feri facias*, directed in the first instance to the bailiff of the Isle of Ely, out of K. B. was executed by the bailiff, it was held that such writ was erroneous and void, and the bailiff was guilty of a trespass against the party whose goods were taken in execution. *Grant v. Bagge*, 3 East, 128. *Vid. Bracebridge v.*

our books ; and therefore in the case betwixt Bowser and Collins in 22 E. 4. 33. b. there Pigot says, if the Court has not power and authority, then their proceeding is *coram non judice* : as if the Court of Common Pleas holds plea in an appeal of death, robbery, or any other appeal, and the defendant is attainted, it is *coram non judice quod omnes concesserunt*. But if the Court of Common Pleas in a plea of debt awards a (b) *capias* against a duke, earl, &c. which by the law doth not lie against them, and that appears in the writ itself ; and if the sheriff arrests them by force of the *capias*, although the writ be against law, notwithstanding, inasmuch as the Court has jurisdiction of the cause, the sheriff is excused : and therewith agrees 38 H. 8. Dy. 60. b. The same law, if a justice of peace makes a warrant to arrest one for (a) felony who is not indicted although the (b) justice errs in making the warrant, yet he who makes the arrest by force of that warrant, shall not be punished by writ of false imprisonment, because he is Judge of the cause (H) ; and therewith (c) agrees

Johnson, 1 Brod. and Bing. 12. S. C. 3 B. Moore. 237. *Bowring v. Pritchard*, 14 East, 289. *Bradshaw v. Davis*, 1 Chitty's Rep. 374. But the sheriff is liable in an action for an escape, where after having arrested a defendant within a liberty, where particular officers had the exclusive privilege of executing all process, upon a *ca. sa.* in which there was not any *non omittas* clause, he suffers him to go at large before his removal from the liberty, for the arrest is not wrongful against such defendant, though it is wrongful against the bailiff of the liberty. *Pigott v. Wikes*, 3 Barn. and Ald. 502. and *vid. Hunter v. Jackson*, 6 T. R. 73.

Whatever protection an officer of a Court of competent jurisdiction, acting in obedience to the process of the Court, may be entitled to, it is quite clear, that if without any authority from the Court he maliciously issues an instrument purporting to be an order of the Court, by which a party is injured, the party injured may maintain an action against him. *Whitelegg v. Richards*, 2 Barn. and Cress. 45. S. C. 3 Dow. & Ryl. 237.

The protection afforded to the party in the suit is not commensurate with that afforded to the officers of the Court. Thus if an action be brought in an Inferior Court, where the cause of action did not arise within its jurisdiction, the plaintiff in the cause is considered as a trespasser in taking the defendant's goods in execution, but not the officers, per Lord Kenyon, 6 T. R. 245. *vid. Goodwin v. Gibbons*, 4. Burr. 2108. *Olliet v. Bessey*, T. Jones, 214. Vin. Ab. Courts, L. a. 6. *Truscot v. Carpenter*, 1 L. Raym. 230. *contrà*. In *Olliet v. Bessey*, the Court said, "the plaintiff shall be intended to know where the cause of action arose, but that it is impossible for the Court and officers to know that ;" and this is the difference between this case and the *Marshalsea case*, for the Court and officers in the latter may well know whether the parties to the suit are of the household or not. So also it seems if a judgment or execution has been set aside for irregularity, the sheriff or officer may justify under it, but the party cannot, for it is not like an erroneous judgment which is the act of the Court, but it is a matter in the privity of himself or his attorney. Note c. *King v. Harrison*, 15 East, 615. Tidd's Practice, 1072. 8th Edn. But in setting aside judgment and execution for irregularity, the Court will restrain the defendant from bringing an action of trespass, unless a strong case of damage be shewn. *Lorimer v. Lule*, 1 Chitty's Rep. 134. *Vid.* note (g), *Bonham's case*, 8 Co. 121. a.

(b) 6 Co. 52. b. 54. a. 9 Co. 68. a. 2 Roll. Rep. 434. 493. Moor 767.

(a) Dy. 69. pl. 29.

(b) Cro. Car. 395. 602.

(c) Br. Faux Imprisonment 8. Br. Peace 6.

(H) If a man be accused to a justice of peace for an offence for which he causes him to be arrested by his warrant, although the accusation be false, yet he is excusable ; but if the party be never accused, but the justice of his malice and own head cause him to be arrested, it is otherwise. *Windham v. Clere*, Cro. Eliz. 130. *Morgan v. Hughes*, 2 T. R. 225. Also, when an individual charges a constable to take a party into custody for a felony alledged to have been committed by him, no action will lie against the constable for the arrest, whether a felony has been committed or not, because in such a case it is his duty to act, and not to deliberate. But if an action be brought against both, the constable ought to plead separately, for if he should join

14 H. 8. 16. a. But if one be indicted before justices of peace, and confesses the felony, and has a coroner, and becomes an approver, and makes an appeal, such appeal before the King was adjudged void, as appears in (d) 9 H. 4. 1. b. & (e) 2 H. 4. 19. a. *Vide* 44 E. 3. 44. a. b. and the reason of that case (as some suppose) is, because the commission of peace extends only *ad inquirendum* (sc. to enquire before themselves) *audiendum et terminandum*; and so the appeal of the approver is out of (f) their commission, because the approver doth not make his appeal before the justices, but before the coroner, and the coroner records it to the Court. But the reason which is given in (g) 9 H. 4. 1. b. is, that the justices of the peace have no power to assign him a coroner, no more than they can enquire of treason, as it is there also held, because it is not within their commission. So where the (h) sheriff who is prescribed by the lord to hold his turn within the month after Michaelmas, &c. holds his turn after the month, and takes an indictment of robbery at the same turn, and the indictment is by *certiorari* removed into the King's Bench, by the advice of all the justices the party so indicted was discharged, because the indictment was utterly void, and *coram non iudice*, forasmuch as at that time the sheriff had not authority to hold the Court. And it was said by the justices, that if a man has a leet which has been held at a certain day, if he holds it at another day, that such court so held is void, and without warrant; and otherwise it is of a court [77 a] baron. But if the Court of Common Pleas holds plea in debt, trespass, &c. without an original, it is not void, for they are Judges of those pleas, and it cannot be said that the proceeding is *coram non iudice*: and therewith agrees (i) 19 E. 4. 8. b. and therewith in the point agrees the said book in (k) 6 R. 2. that judgment in the Marshalsea, when (l) none of the parties is of the King's Household, may be avoided by plea (m) without any writ of error, which proves that it is void. *Vide* 20 E. 4. 16. b. 22 E. 4. 13. 31. & 10 H. 6. 13. a. It is agreed in the point also, that in trespass before the Steward and Marshal, if none of the parties be of the King's Household, there it is *coram non iudice*, because they exceed their power. The same law, if they hold plea out of the verge, as it is held in Plo. Com. *Plat's case*, 37. b. and that agrees with the rule, *extra territorium jus dicendi non paretur impune*. *Vide* 22 Ass. 64. Plo. Com. 394. b. 37 Ass. p. 17. 39 E. 3. 33, 34. 39 Ass. p. 6. 7 H. 4. 27. 11 H. 4. 36. 36 H. 6. 32. 22 E. 4. 32. 1 R. 3. 1. 2 R. 3. 2. 5 H. 7. 17. b. 9 H. 7. 12. 21 E. 3. Barre 271. 3 Mar. (a) Dy. 135. And with this difference all the books were well reconciled. And as to the said case of (b) 7 E. 3. 23. b. 24. a. by the common law it belongs to the office of the Marshal to protect the Court from whores, as appears in Fleta, lib. 2. c. 5. (c) *Mareschalli interest virgatam a meretricibus omnibus protegere & deliberare, & habet Mareschal' ex consuetudine pro qualibet meretrice communi infra metas hospitii inventa 4d. primo die, que si iterum in ballivâ suâ inveniat', capiatur, & cor' Seneschal' inhibeant' ei hospitium Regis reg' & liberor' suor', ne iterum ingrediatur, & nomina ear' imbrevient', que si iterum inventæ fuerint hospit' secutrices, tunc aut remaneant in prisonâ in vinculis, aut sponte præd' hospit' abjurent, que si autem tertio inventæ fuerint, considerabitur quod amputetur eis*

in pleading, and the plea should not amount to a justification for both; being bad in part, it is bad for the whole, and consequently judgment will be given against him. *Hedges v. Chapman*, 2 Bing. 523.

(d) 3 Inst. 130. Fitz. Corone 77. Br. Appeal 28. Br. Corone 25.

(e) Fitz. Justice of Peace 5. Br. Peace 1. Br. Appeal 18.

(f) 3 Inst. 130. Ha. pl. Cor. 194.

(g) *Supra*.

(h) 31 E. 3. c. 15. Stam. Cor. 84. a. b. 6 H. 7. 2. a. Br. Indictment 27. 99. Br. Leet 17. 21. 38 H. 6, 7. a. Fitz. Tourn de Viscount 2. 6. Fitz. Indictment 14. Fitz. Leets Hundred 2.

(i) 6 Co. 20. b.

(k) Br. Action. sur le Stat. 49. *Antea* 75. a.

(l) F. N. B. 241.

(m) *Contr. plac.* 277.

(a) Dyer. 135. pl. 14. 11 Co. 64. b. 2 Roll. Rep. 100.

(b) *Antea* 70. b.

(c) 3 Inst. 205.

tressoria & tondeantur, quæ quidem si quarto invenient', tunc amputentur eis superlabia, ne de cætero concupiscant ad libidinem. This being the law, it appears, that the report of the said book of 7 E. 3. 23, 24. is so obscure and imperfect, that much of the substance of the matter ought to be supplied by intendment.

And the Chief Justice in the conclusion of his argument observed, that all the cases in which before there was diversity of opinions betwixt this Court and the Court of King's Bench, are now unanimously resolved. 1. That the general declaration in an action upon the case *quod cum indebitat' fuit* in such a sum, *sup' se assumpsit*, without shewing the cause of the debt, is insufficient (I). 2. That a particular declaration in such case shewing the cause of the debt, although it appears that the plaintiff may have an action of debt, well lies, as it was resolved in *Slade's case* (K). 3. That for an *assump'* of the testator, &c. to pay a debt or duty, an action upon the case lies against the executors, &c. as it was adjudged [77 b] in *Pinchon's case*, in the Ninth Part of my Reports (L). 4. This case of the jurisdiction of the Marshalsea is not adjudged by both Courts, *sc.* in the case of the said Jeremy Gray in the King's Bench, and in the case at Bar in this Court; against which judgments there is no opinion in any of our books, but as appears before, many concurring in *terminis* with them in all the points now resolved (M). So that our successors, as I believe, may take up the saying of the prince of poets :

*Haud unquam neque concio nos neque curia dictis
Audivit pugnare, animo sed semper eodem
Et sentire eadem, atque eadem decernere vellet.*

(I) Acc. Godb. 186. Doctr. pl. 20. *Wollaston v. Webb*, Hob. 18. *Jansen v. Colloman*, 1 Roll. Rep. 396. And this omission may be taken advantage of after verdict, by motion in arrest of judgment. *Holme v. Lucas*, Cro. Car. 6. *Foster v. Smith*, Cro. Car. 31. *Mayor v. Hare*, Cro. Jac. 642. *Wise v. Wise*, 2 Lev. 152. Or by writ of error. *Woodford v. Deacon*, Cro. Jac. 206. *Buckingham v. Costendine*, ib. 214. *Barker v. Barker*, Palm. 171. *Lydney v. Hemmerse*, 1 Bulstr. 67. But it is sufficient if the declaration state generally, that the defendant was indebted for divers wares sold, or for such like contract. *Woodford v. Deacon*, *ubi. sup.* *Bellinger v. Gardiner*, 1 Roll. Rep. 24. Jenk. Cent. 293.

So the plaintiff may declare generally for so much money expended, had and received, &c. *Rooke v. Rooke*, Cro. Jac. 245. *Babington v. Lambert*, Moore 854. For work and labour, *Hibbert v. Courthope*, Carth. 276. For the agistment of cattle in the plaintiff's ground. *Gardiner v. Bellingham*, Hob. 5. For a premium upon a policy of assurance upon such a ship. *Fowke v. Pinsacke*, 2 Lev. 153. Upon account stated. *Homes v. Savill*, Cro. Car. 116. On a foreign judgment without stating the cause of action on which the judgment proceeded. *Crawford v. Whettall*. *Plaistow v. Van Uxem*, note (1) to *Walker v. Witter*, Doug. 4. Or for money had and received without stating for what cause it was had and received. *Rables v. Sikes*, 22 Car. 2. cited Selw. N. P. tit. Assumpsit. So also a general *indebitatus assumpsit* will lie for copyhold fines without alleging any custom to pay a fine or how it was assessed, &c. *Whitfield v. Hunt* cited note † 155. *Grant v. Astle*, Dougl. 627. b. and *vid.* Bac. Ab. Assumpsit F. Where the debt is but a conveyance to the action, the general allegation *quod cum* such a one *indebitatus fuit*, without shewing how he was indebted is sufficient, as where the action is brought upon a collateral consideration, as forbearance to sue another, the cause of the debt need not be shewn. *Theme v. Fuller*, Cro. Jac. 396. *Austin v. Bewley*, ib. 548. *Linghen v. Broughton*, 1 Roll. Rep. 379. S. C. [3 Bulstr. 206. Moor. 853].

(K) *Vid.* note (B) *Slade's case*, 4 Co. 93. b.

(L) *Vid.* *Pinchon's case*, 9 Co. 86 b.

(M) There is also a palace Court to be holden before the Steward of the household, and Knight Marshal, and the Steward of his Court or deputy, with jurisdiction to hold pleas of all personal actions whatsoever, which shall arise between any parties within 12 miles of the palace at Whitehall. This Court was created by letters patent, 6 Car. 1. *Vul. Anon.* Salk. 439. *Inman v. Batten*, 1 Sid. 180. 3 Black. Comm. 16. and the references *ante* note (B).